

**Before the
FEDERAL MARITIME COMMISSION**

Washington, DC 20573

Docket No. No. 1966(I)

**TCW, INC., Claimant,
v.**

**EVERGREEN SHIPPING AGENCY (AMERICA) CORPORATION and EVERGREEN LINE JOINT
SERVICE AGREEMENT, Respondents**

**MOTION OF THE WORLD SHIPPING COUNCIL FOR LEAVE TO FILE AN AMICUS CURIAE BRIEF
IN SUPPORT OF RESPONDENTS**

Pursuant to 46 C.F.R. § 502.73, and the Federal Maritime Commission's ("Commission") Order for Supplemental Briefing in the above-referenced docket dated April 26, 2021, the World Shipping Council ("WSC"), through its undersigned counsel, hereby submits this motion for leave to file an amicus curiae brief in support of Respondents, Evergreen Shipping Agency (America) Corp. and Evergreen Line Joint Service Agreement ("Respondents").

WSC's 20 ocean carrier members, which are comprised of operators of containerships and roll-on/roll-off vessels (including vehicle carriers), represent approximately 90 percent of global liner vessel capacity. As a non-profit trade association that represents the international liner shipping industry on important legal, regulatory, and policy matters, WSC and its members have a direct interest in the outcome of the Commission's review of the Small Claims Officer's

(“SCO”) Initial Decision dated February 19, 2021 (“I.D.”), finding that Respondents’ acts in question were unreasonable in violation of 46 U.S.C. § 41102(c). WSC understands that, under the Commission’s regulations, amicus curiae briefs are limited to broader “questions of law and policy.” Given that the Commission has determined on its own motion to review the I.D., coupled with the fact that the Commission appears to have welcomed the filing of amicus curiae briefs, the Commission clearly recognizes that there are potentially significant legal and policy issues presented by this case. As the Commission has limited the principal parties’ briefs to thirty pages, and asked those parties to respond to three separate and distinct legal questions, WSC wants to ensure that the Commission has the benefit of full briefing on all of the key substantive legal and policy questions presented by this case.

In this regard, WSC intends to limit its comments in its amicus curiae brief to issue 2 as set forth in the April 26, 2021 Order, namely the legal and policy issues implicated by the SCO’s finding that the alleged acts of Respondents were unreasonable under 46 U.S.C. § 41102(c), and the Commission’s particular interest in “arguments regarding the application of the interpretive rule on demurrage and detention.” As the Commission is aware, WSC participated in the rulemaking proceeding in Docket No. 19-05, which led to the issuance of the Commission’s Final Interpretive Rule on Demurrage and Detention Under the Shipping Act, [85 Fed. Reg. 29665](#), 46 C.F.R. § 545.5 (May 18, 2020) (the “Interpretive Rule”), the authority relied upon by the SCO in the I.D. on this issue. WSC also submitted written comments in Matter P4-16 and participated in the Commission’s non-adjudicatory Fact-Finding Investigation No. 28, and the investigatory records and findings in these proceedings formed the basis for both the Commission’s proposed and final Interpretive Rule. In all of these proceedings, WSC addressed many broad legal and

policy issues relating to ocean carrier detention and demurrage practices, and WSC believes it is therefore well-positioned to assist the Commission in its review of the SCO's decision as it relates to the application of those laws and policies to the particular facts in this case.

For these foregoing reasons, WSC requests the Commission grant its motion for leave to file an amicus curiae brief in support of Respondents in this case. Pursuant to 46 C.F.R. § 502.73(a), WSC's amicus curiae brief is being conditionally filed as Attachment A to this motion.

Respectfully submitted,



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June 2, 2021

CERTIFICATE OF SERVICE

I hereby certify that I have this 2nd day of June, 2021, served a true and correct copy of the foregoing Motion for Leave upon all parties identified below via electronic mail:

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